Shri Rajiv Kumar Nigam vs State on 13 October, 2023

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 2999/2023

SHRI RAJIV KUMAR NIGAM

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STATE

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CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

OR

% 13.10.2023

1. The present application under Section 439 of the CrPC seeks regIular bail in case FIR No. 68/18 under Sections 406/409/419/420/467/468/471/ 120B of the IPC registered at PS EOW.

2. The case of the prosecution is that the present F IR was registered at the instance the branch head of Punjab National Bank, Jungpura, New Delhi. It was alleged that one Narinder Singh obtained a cash credit limit of Rs. 75 Lakhs from the complainant bank in the name of his proprietorship concern

- M/s Pushp Enterprises. The guarantee for the said credit facility was given by one Alka Bali and she had created an equitable mortgage of property bearing No. MS-86, Village-Tihar, Hari Nagar, ND-64. On enquiry, it was found that the guarantor had already sold the front portion of the said property measuring about 70 square yards vide a duly registered sale deed dated 16.04.2013. During the course of investigation, relevant documents This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/10/2023 at 13:58:30 regarding the sanction of cash credit facility to M/s Pushp Enterprises were obtained and the applicant was arrested on 03.01.2023.

3. As per the status report dated 11.10.2023 authored by Sh. Ramesh Kumar Narang, Assistant Commissioner of Police, Economic Offences Wing, the role ascribed to the present applicant is as

under:

> "9. Role of petitioner/accused RaJiv Kumar Nigam: -
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> The loan was sanctioned by him without doing due diligence in respect of title to the mortgaged property and guarantor and fraud has been perpetrated. Mrs. Alka Bali w/o Mr Vikas Bali i.guarantor in the account had already sold 70 sq. yards (front portion) to Sh. Om Prakash Sangwan on 16.04.2013 before sanction of the loan, and remaining 80 sq. yards also sold by: .executing sale deed on 03.11.2014 regd. on 10.11.2014 He did not act prudently and purchased a cheque for Rs. 98000/- to the credit of CC account even when the a/c had turned NPA on 31.03.2016. The Cheque returned unpaid on 04.04.2016. He failed to ensure that Mutation was got done by the borrower in his favour.
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> He failed to obtain and hold on record certified copy of title deeds from the approved advocate.
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> He failed to obtain and hold on record latest house tax receipt in the above account.
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> He failed to obtain and hold on record copy of Approved map along with fee deposited for approval in the account He failed to check the authenticity. of the unit as no board of the firm was available on the visit by bank officials on 21.06.2016. He failed to monitor the following Suspicious Credit transactions from this account to below mentioned accounts.."

4. Learned Counsel appearing on behalf of the applicant submits that the present applicant was arrested in the present FIR on 03.01.2023. It is further submitted that investigation in the present FIR is complete, the chargesheet stands filed and the matter before the learned Trial Court is still at the stage of consideration on charge.

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5. Per contra, learned APP for the State opposes the present bail application and submits that the allegations qua the present applicant and co- accused persons are serious in nature and they have committed huge fraud with the complainant. It is pointed out that similar FIRs registered at PS EOW are pending against the present applicant.

6. In rejoinder, learned counsel appearing on behalf of the applicant submits that as far as the other cases pending against the latter are concerned, the applicant has been granted bail in FIR Nos. 55/2018 and 63/2018 registered at PS EOW. It is further submitted that the applicant has been granted bail in FIR Nos. 56/2018 and 64/2018 registered at PS EOW vide orders dated 31.07.2023

(in BAIL APPLN. 1926/2023) and 14.09.2023 (in BAIL APPLN. 1929/2023), respectively, passed by coordinate benches of this Court.

7. Heard learned counsel for the parties and perused the record.

8. As noted hereinabove, the applicant is on bail in the other FIRs registered against him. While granting bail to the applicant in FIR No. 56/2018 under Sections 420/409/406/468/471/120B IPC registered at P.S. EOW vide order dated 31.07.2023 passed in BAIL APPLN. 1926/2023, a coordinate bench of this Court observed and held as under:

> "6. After hearing arguments and going through the case file, this Court is of the opinion that the present accused/applicant was the branch manager of the complainant Bank and some of the loans/credit facilities granted by him had become NPA since it was found that the customers had tendered false and fabricated documents in support of their loan applications. In a nutshell, there has been default in repayment of loan and the case of prosecution is that a branch manager's duty is to personally check all the relevant documents and physically verify the mortgaged property prior to sanctioning of loan and the applicant This is a digitally signed order.
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> 7. Be that as it may, it is not disputed that accused/applicant had served the complainant Bank for a long period of time and had retired on 31.03.2016 and nothing adverse had come against him on record, however, the present FIR was registered two years thereafter. The investigation in the present case is complete and the chargesheet has already been filed against the accused persons, and the charges are yet to be framed. The applicant is aged about 67 years, having roots in society, and has been in judicial custody since 28.10.2022."

9. The investigation in the present case is complete and the chargesheet stands filed. The trial is still at the stage of consideration on charge and is likely to take a long time to conclude. As per nominal roll dated 12.10.2023, the applicant has been in judicial custody for 09 months and 08 days.

10. In totality of the facts and circumstances of the case, the present application is allowed.

11. The applicant is admitted to bail upon his furnishing a personal bond in the sum of Rs. 50,000/- alongwith one surety of like amount to the satisfaction of the learned Trial Court/Link Court, further subject to the following conditions:

> i. The memo of parties shows that the applicant is residing at A-1/142, 1st Floor, Safdurjung Enclave, New Delhi. In case of any change of address, the applicant is directed to inform the same to the learned Trial Court and the Investigating Officer.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/10/2023 at 13:58:31 ii. The applicant shall not leave India without the prior permission of the learned Trial Court.
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> iii. The applicant is directed to give all his mobile numbers to the Investigating Officer and keep them operational at all times. iv. The applicant shall not, directly or indirectly, tamper with evidence or try to influence the witnesses in any manner.
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> v. The applicant shall join the investigation, as and when required by the Investigating Officer.
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> vi. In case it is established that the applicant tried to tamper with the evidence, the bail granted to the applicant shall stand cancelled forthwith.

12. The application stands disposed of along with all the pending application(s), if any.

13. Needless to state, nothing mentioned hereinabove is an opinion on the merits of the case.

14. Let a copy of this order be communicated to the concerned Jail Superintendent for necessary information and compliance.

15. Order be uploaded on the website of this Court, forthwith.

AMIT SHARMA, J OCTOBER 13, 2023/kct This is a digitally signed order.

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